OASIS NECTA LIMITED
P.O. BOX 8946 – 00200, CITY SQUARE
NAIROBI, KENYA

MODERN BEEKEEPING CONTRACT

THIS AGREEMENT is made on this date…… for a term of **5 YEARS BEEKEEPING** contract.

BETWEEN

1) **OASIS NECTA LIMITED** of Post Office Box No. 8946-00200 Nairobi (herein after called the **'PARTNER'**).

--- and ---.

2) …… **of TELEPHONE NUMBER** …… , (herein after the **'CLIENT'**).

WHEREAS:

(A) OASIS NECTA LIMITED is in the business of providing beekeeping equipment, technical support services and marketing of Beekeeping products.

(B) The Client desires to retain the Partner to provide services and the Partner agrees to provide such services to the Client as set forth herein.

IT IS HEREBY AGREED AND DECLARED AS FOLLOWS:

RESPONSIBILITIES FOR THE PARTNER:

1. The Partner will provide hives. The Langstroth hives shall be at a cost of Kenya Shillings, Five thousand (Kshs 5,000) only per hive.
2. Payment for the Langstroth hives and Transport shall be made directly to the Partners firm account with details below:

Bank	: KINGDOM BANK
Paybill	: 529914
Account Name	: OASIS NECTA LIMITED
Account Number	: 65193
Email	: oasisnectaltd1@gmail.com
Contact Phone	: +254726897456

3. The partner shall visit the installed hives to provide technical support and to any other hive that the client might be having. During these visits, the Partner shall undertake colony division as may deem appropriate in any of the uncolonized hives. Harvesting for the 1st year shall be free of charge. The Client will only be required to take care of the transport, meals and accommodation expenses of the officer undertaking the harvesting.

4. The partner shall provide ready market for the produce at the current market rate;

   (a)Honey at Ksh.550 per kg;

   (b) Propolis at Ksh.800 per kg;

   (c) Bee Pollen at Ksh.1,000 per kg and

   (d) Bee venom at Kshs.1,500 per gram.

   The payments shall be cash on collection of the products. In case the Client has a market with a better offer for any of the produce, s/he is free to sell to that market but shall retain 20% of the total harvest to the Partner.

5. The Partner will have free access to the Clients property to perform beekeeping duties; making every effort to keep the bees alive and healthy based solely on the Partner's judgment/decision.

6. The Partner understands that the bee colony, hive, and honey remain the property of the Client.

7. The Partner shall not bring inexperienced visitors/work force/agents in the apiary site.

8. The Partner shall provide feedback on the progress following the seasonal visits.

9. The Partner acknowledges that this is intended to be a long-term relationship and that the client wishes for the bees to remain, unmoved, for many years. There is no guarantee the bees will remain alive. Should the colony die, the Client shall install a new colony as soon as reasonably possible.

10. The Partner relieves the Client of any liability should an accident occur causing injury to the Partner's agents or damage to his equipment provided such injury is not the result of the Clients negligence or deliberate act.

11. The Partner undertakes to keep the hives in a good and clean state of repair and to bear all costs of running, moving and maintaining the hives.

RESPONSIBILITIES FOR THE CLIENT

1) The Client agrees to provide a suitable place to locate the hives. The site must be accessible to a truck and/ or other vehicles used in handling and servicing the colonies.

2) The Client shall allow the Partner entry on the premises whenever necessary to service the bees,

3) The Client shall notify the Partner of any damages to the property of apiary site that may occur as soon as possible so that the Partner can try to fix the damage and save the bees. Such damages include and not limited to:(floods, winds, vandals, wildlife)

4) The Client shall keep the Apiary neat and tidy and not place unused and unnecessary equipment or debris on the property.

5) The Client shall provide transport and accommodation to the apiarist on the site but the services are free of charge.

TERMINATION

In the event that either Party wishes to terminate this Agreement during the Term or a Renewal Term, the terminating party shall provide thirty (30) days' written notice to the other Party.

In the case of force majeure the present agreement can be terminated by either party who must notify the other party. Termination is upon formal notification.

The Term shall renew for an additional year upon expiration of the Term (each, a "Renewal Term") unless notice of termination is given by either party.

This five **years** Agreement contains the entire agreement and understanding between the parties with respect to the subject matter hereof and supersedes and replaces all prior agreements or understandings written or oral with respect to the same subject matter that are still in force between the parties.

Any amendment to this Agreement as well as any additions or omissions can only take place when agreed in writing with the mutual consent of both of the parties.

ASSIGNMENT OR TRANSFER

This Agreement is not assignable or transferable by either party, except that the terms hereof shall be binding upon a successor by operation of law to the interest of either party.

IN WITNESS THEREOF, the parties hereto have executed this agreement the day and year above. The parties, by placing their signatures below, acknowledge that they have read this agreement, understand its terms and agree to be bound hereby for themselves, their heirs and assigns, and that neither party shall be held to any other or different terms unless those terms are reduced to writing and signed by the parties.

IN WITNESS WHEREOF this Agreement has been duly executed by the parties hereto on the day and the year first above written.

Signed by the (THE CLIENT) Sign_____

ID. No._____

Name: _____ _____

Signed by (THE PARTNER) Sign_____

ID. NO_____

Name_____

Advocate

I certify that this is a legal agreement signed by the two parties

Name of advocate:
Address:
Signature: